

theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

D. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

These are two motion to file confidential portions of a summary judgment motion under seal. The motions are unopposed and uncontroversial. For unexplained reasons, however, the parties have stipulated to request that the motion hearings be continued a week. They are therefore **continued** to April 22.

9. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

See Line 8 above.

10. 9:00 AM CASE NUMBER: C24-01993
CASE NAME: ROSEMARIE TUNICK VS. EAST BAY MUNICIPAL UTILITY DISTRICT
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Town of Moraga's Motion for Summary Judgment.

The Defendant's Request for Judicial Notice is denied because the Court doesn't require judicial notice as to the files in this case. However, it appreciates the convenience of having the documents pulled out for inspection.

For the following reasons, Defendant's MSJ is **denied** as outlined below.

Factual Allegations

This matter pertains to an alleged trip and fall that occurred on September 8, 2023, on a sidewalk located adjacent to the Moraga Country Club Golf Course in Moraga, California. On that date, Plaintiff alleges she was walking on the public sidewalk when her right foot caught on an uneven asphalt 'patch' used to repair a trench, causing her to fall. She alleges this was a dangerous condition.

On February 9, 2024, Plaintiff, through her counsel, submitted a "Claim Presented to the Town of Moraga" Form 4.1 ("Claim Form") to the Town of Moraga. (Brunner Decl. ¶ 2 Ex. 1.) The Claim Form includes 9 separate sections/questions requesting specific information related to the incident. (*Ibid.*) While sections 1, 2, 8, and 9 are filled in, sections 3-5, and 7 merely state: "See Attachment A" [all caps removed], and section 6 is left blank. (*Ibid.*) Attached to the Claim Form is four-page document titled: "Claim for Personal Injury." It includes a description of the parties, the incident, alleged liability, causes of action, and a demand.

The Town of Moraga ("Town" or "Defendant") received the Claim Form and attachment on July 9, 2024. (UMF 12.) On February 14, 2024, the Town provided Plaintiff's counsel with a Notice of Insufficient Claim ("Notice"), pursuant to Government Code section 910.8. (UMF 13.) The Notice indicated that the Claim Form was insufficient for two reasons. First, that it failed to "state the date, place or other circumstances of the occurrence, event or transaction which gave rise to the claim being asserted." Second, under "Other" the Town indicated that the "details provided about the incident location are not detailed enough for the Town to locate the specific incident location." (Brunner Decl. Ex. 2.)

The Town did not receive any response to the Notice. (UMF 15.) Plaintiff did not submit any amendment to the Claim Form. (UMF 16.) Plaintiff filed the Complaint in this matter on July 26, 2024, alleging a single cause of action for "Personal Injury." Plaintiff filed the operative First Amended Complaint on September 22, 2025, alleging claims for (1) dangerous condition of public property and (2) vicarious liability for employee negligence, against moving Defendant.

Technical Defects in Plaintiff's Papers

Plaintiff's opposition papers are frankly sloppy and unprofessional in a number of respects. Given that the substance of the motion relates to the technical adequacy of plaintiff's notice of claim, it is poor

tactics at best for plaintiff not to make a better effort on easy technical compliance matters.

- **Page Numbers and Footer:** “Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page.” (Cal. R. Ct. 2.109.) In addition, the footer of the document “must contain the title of the paper (examples: ‘Complaint,’ ‘XYZ Corp.’s Motion for Summary Judgment’) or some clear and concise abbreviation.” (Cal. R. Ct. 2.110.) Plaintiff’s Opposition fails to include page numbers anywhere and the footer improperly says “Points and Authorities” on every page. When the Court references the Opposition papers it begins numbering on the page where the Introduction starts.
- **Electronic Bookmarks:** Plaintiff’s counsel submits a declaration which attaches several documents. “[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff’s counsel’s declaration in support of his Opposition attaches five separate exhibits but fails to include bookmarks to any of the exhibits.
- **Citation to State Trial Court Opinions:** In Opposition, Plaintiff cites several trial court opinions. “Trial court decisions are not precedents binding on the other courts under the principal of stare decisis.” (*Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148; see also *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761 “[A] written trial court ruling has no precedential value.”). As “trial court orders hold no precedential value [citation]” the Court will not rely upon these orders. (*City of Bakersfield v. West Park Home Owners Assn. & Friends* (2016) 4 Cal.App.5th 1199, 1210.)
- **Response to Separate Statement:** When responding to a separate statement, the “response must unequivocally state whether that fact is ‘disputed’ or ‘undisputed.’ (Cal. R. Ct. 3.1350 (f)(2).) “An opposing party that contends that a fact is disputed must state ... the nature of the dispute and describe the evidence that supports the position that the fact is controverted.” (*Ibid.*) “Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line number.” (*Ibid.*)
Plaintiff indicates that many of the UMFs are undisputed. As to the other UMFs, Plaintiff does not state that they are “disputed,” but instead provides commentary related to the UMF. Some appear to dispute the wording of the UMF (e.g. 2, 8, 11), while others appear to be objections (e.g. 6), and others just include statements without citation to any facts or evidence in support (e.g. 13-14, 17-19.)
To the extent the response purports to be an objection, it fails to comply with the requirements for objections. All written objections must be contained in a *separate* document from the separate statement and must conform to the format set forth in CRC 3.1354(b). The party submitting the written objections “must submit with the objections a proposed order.” (CRC 3.1354(c).) This did not occur.
As Plaintiff failed to properly ‘dispute’ any of the facts set forth by the Town, the

Court will deem all of the facts to be undisputed.

Plaintiff's counsel is reminded to comply with the Rules of Court when submitting papers to the Court.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law." (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353, quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.'" (*Ibid.* quoting *Aguilar*, 174 Cal.App.4th at 851.)

Analysis

The Town's MSJ focuses on the Claim Form submitted by Plaintiff. It argues that the Claim Form is insufficient to qualify as a 'written claim' under applicable law. Specifically, the Town of Moraga argues that "Plaintiff failed to satisfy two of the statutorily required elements set forth at Government Code section 910(c) and 910(f)...." (Notice at 2:11-12.)

Claim Presentation

Under the California Tort Claims Act, a public entity is not liable for an injury arising from an act or omission except as provided by statute." (*Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630.) "There is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person." (*Gibson v. City of Pasadena* (1978) 83 Cal.App.3d 651, 655 quoting *Cowing v. City of Torrance* (1976) 60 Cal.App.3d 757, 761.)

Under the Claims Act no suit can be brought against a public entity under "a claim has been filed with the relevant public entity and either the public entity acts on it or it is deemed to have been denied by operation of law." (*Alliance Financial v. City and County of San Francisco* (1998) 64 Cal.App.4th 635, 642.) "Section 945.4 of the California Government Code provides that no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented until a written claim has been presented to the public entity and has been rejected in whole or in part." (*Dilts v. Cantua Elem. Sch. Dist.* (1987) 189 Cal.App.3d 27, 31.) "Presentation of a

claim, when required by law, is a mandatory prerequisite to maintenance of any cause of action against a public entity.” (*Ibid.*)

Government Code section 910 sets forth the information required to be included in a government claim. Relevant to the Town’s MSJ, section 910 states:

A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following:

...

(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claims asserted.

...

(f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.

Subdivision (f) - Damages

The Court notes that the Town’s argument regarding this issue is a bit confusing, so the Court will do its best to outline the argument and address the issue. The Town notes that the Claim Form does not contain the requested and required information, but instead “is exclusively reliant on reference to ‘Attachment A.’” (MSJ at 6:27-7:3.) It then claims that “[n]owhere in Plaintiff’s claim is there a specific total dollar amount Plaintiff was claiming as a result of her alleged injuries, as is statutorily required.” (*Id.* at 7:8-9.) There are a couple of problems with this argument.

Regarding the failure to include a ‘specific total dollar amount’ the Town correctly notes that the Claim Form does not include an amount claimed:

6. Claim amount (only if less than \$10,000):

If the amount exceeds \$10,000, please check the court for appropriate jurisdiction:

_____ Municipal Court (claims up to \$25,000) _____ Superior Court (claims over \$25,000)

Importantly, however, the Claim Form makes clear that the specific amount claimed is only required if that amount is “less than \$10,000.” This tracks the requirements of subdivision (f) quoted above. A party is only required to provide a specific amount sought if that amount is less than \$10,000. “If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim.” (Gov’t Code § 910 (f).)

The Claim Form does request that the party indicate, if the claim exceeds \$10,000, whether the claim is above or below \$25,000, which is consistent with the requirement under subdivision (f) that such a claim “indicate whether the claim would be a limited civil case.” (*Ibid.*) The Town appears to argue that Plaintiff failed to include this information. It is true that Plaintiff did not check one of the two

options noted above. She did, however, indicate that her claim was well in excess of \$25,000 – despite the Town’s claims to the contrary.

The Town contends that Attachment A fails to include the amount of damages sought. It claims that Attachment A states, in pertinent part:

A demand is herewith made for settlement purposes only and inadmissible under Evidence Code 1152 in the sum of []¹. This offer shall expire 45 days from the date hereof.” (UMF 9, Brunder Decl. Ex. 2.) The footnote indicates that the bracket was “Intentionally left blank.” (*Ibid.*, MSJ at 2:26-3:2.)

Plaintiff, in response, argues that this is an “abhorrent misrepresentation of material fact to the court.” (UMF 9 Response.) Plaintiff is correct that this is a misrepresentation of what was contained in Attachment A to the Claim Form. Below is the text from Attachment A:

A demand is herewith made for settlement purposes only and inadmissible under Evidence Code section 1152 in the sum of **\$750,000**. This offer shall expire 45 days from the date hereof.

While the wording is styled as a settlement demand, it does include a total amount of damages sought. It was unclear why the Town removed this number, which is even in bold in the original document, from its description of the Attachment.

On Reply, the Town indicates that it “opted to honor the inadmissibility of a settlement demand pursuant to Evidence Code section 1152 and not display the demanded settlement amount in a publicly filed pleading, i.e., defendant intentionally left blank the demanded amount.” (Reply at p.6 fn.5.) This explanation, however, does not explain why the Town then filed the complete letter as Exhibit 1 to the Briner Declaration without redacting that number out. The excerpt above came from that document. It also does not explain why the Town did not indicate in its opening papers that a number was provided, but they were intentionally leaving the exact amount out for the reasons stated. For example, indicating “redacted” instead of making it appear that Plaintiff ‘intentionally left blank’ the amount.

Related to this issue is the applicability of Evidence Code section 1152. That section provides, in pertinent part:

Evidence that a person has ... furnished or offered or promised to furnish money or any other thing, act, or service to another who has sustained ... loss or damage ... is inadmissible to prove his or her liability for the loss or damage or any part of it. (Evid. Code § 1152 (a).)

Evidence Code section 1152 only prohibits the use of a settlement document to prove liability for the damage or loss at issue. It is not an “absolute bar[] to admissibility, since a settlement document may be admissible for a purpose other than providing liability.” (*Volkswagen of America, Inc. v. Superior Court* (2006) 139 Cal.App.4th 1481, 1491.) Thus, Attachment A, even if it is considered a ‘settlement demand’ is admissible and can be used to establish that Plaintiff did in fact include an amount at issue

related to her claim.

While Plaintiff did not check one of the blanks at line 6 indicating whether her claims was a claim up to, or over, \$25,000, her demand for \$750,000 makes clear that her claim would not be a limited civil case – which is all that is required under Government Code section 910, subdivision (f).

As to the Town’s argument that Plaintiff failed to provide the breakdown of the total amount claimed – requested at section 7 of the Claim Form, such an analysis is **not** required by the Government Code. As such, failure to provide such information in the Claim Form does not indicate Plaintiff’s claim presentation was deficient.

It is also worth noting that the Town’s Notice of Insufficient Claim did not indicate that the failure to include the amount of damages was a basis for the Town considering the claim to be insufficient:

“[C]laims are not required to be technically perfect.” (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1234.) “The claim need only substantially comply with all of the statutory requirements.” (*Ibid.*) Here, with respect to the damages sought by Plaintiff, the claim substantially complies in that the information submitted to the Town indicates that Plaintiff is seeking more than \$25,000 in damages – *i.e.* her claim is not a limited civil case.

“Furthermore, if a claim presented does not substantially comply with the claim filing requirement, the public entity must advise the claimant of the deficiencies or lose the right to assert the noncompliance as an affirmative defense.” (*Ibid.*) The Town failed to inform Plaintiff that it believed her claim was deficient for failure to indicate the amount of damages sought. As such, it has waived its right to assert that element as a basis for the alleged noncompliance.

Subdivision (c) – Location of the Incident

The Town’s second argument is that Plaintiff’s Claim failed to properly identify the location of her alleged fall. Attachment A to the Claim Form indicated the location as:

Location of Incident:	Approximately 974 Moraga Way Moraga, California Near Moraga Country Club Golf Course
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The Town submits the declarations of Brian Horn, Principal Planner of the Town’s Planning Department, and Shawn Knapp, the Director of Public Works Department for the Town. Both individuals declare that the street address of 974 Moraga Way “does not exist.” (Horn Decl. ¶ 2; Knapp Decl. ¶ 4.) Neither of the individuals explain what records they reviewed or the process they used to determine the address does not exist. Mr. Knapp goes on to declare that “no relative measurements from known object(s)” were provided which would have allowed the Town to determine where the incident occurred.

Plaintiff counters that the description above “contains two independent locations references: (1) an approximate street address along Moraga Way, and (2) a well-known local landmark – the Moraga County Club Golf Course.” (Opp. at 3:13-14.) “The use of the qualifier ‘Approximately’ demonstrates the claimant was providing her best estimate, not asserting a precise address. Together with the landmark reference, this narrowed the location to a specific and identifiable stretch of public

sidewalk.” (*Id.* at 3:14-16.)

Even if the Court finds that the exact address of 974 Moraga Way is not an actual location, the Town does not explain why the description of along Moraga Way near Moraga Country Club Golf Course was insufficient. Per section 910, a claimant must indicate the “place ... which gave rise to the claim asserted.” (Gov’t Code § 910 (c).) “Place” is not defined, nor does the statute provide any indication as to the manner in which the “place” must be described. The Town does not cite any authority which indicates that an exact address is required.

Instead, the Town discusses the ‘substantial compliance’ test and contends that Plaintiff failed to meet its requirements. As the Town’s authority states, “courts employ the test of substantial compliance rather than strict compliance in deciding whether a plaintiff has met the requirements of the Tort Claims Act.” (*Dilts v. Cantua Elem. Dist.* (1987) 189 Cal.App.3d 27, 33.) The test was set forth by the California Supreme Court in *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, wherein the Court concludes “that to gauge the sufficiency of a particular claim, two tests shall be applied: Is there *some* compliance with *all* of the statutory requirements; and, if so, is this compliance sufficient to constitute *substantial* compliance?” (*Ibid.* quoting *City of San Jose* 12 Cal.3d at 456-57.)

“Where there has been *an attempt to comply but the compliance is defective*, the court must ask whether sufficient information is disclosed on the face of the filed claim to reasonably enable the public entity to make an adequate investigation of the merits of the claim to settle it without expensive litigation.” (*Ibid.*) “So long as the purposes of the claims statute are effectuated, its requirements should be given a liberal construction in order to permit full adjudication of the case on its merits.” (*Ibid.*)

While the Town claims that the information provided by Plaintiff fails to provide sufficient information for it to be able to determine where the incident occurred, it does not explain why the information is insufficient. Even if the exact location does not exist, Plaintiff indicated that the accident occurred on Moraga Way near Moraga Country Club Golf Course. This appears to be a relatively specific location.

As the California Supreme Court explained, the purpose of section 910 “is ‘to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.’” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446.) “Consequently, a claim need not contain the detail and specificity required of a pleading, but need only ‘fairly describe what [the] entity is alleged to have done.’” (*Ibid.* citation omitted.) “When a notice contains the information necessary for that purpose [i.e. to provide sufficient information for the entity to investigate], it is substantial compliance with the statute.” (*Mace v. Pasadena* (1962) 199 Cal.App.2d 522, 526.)

“As the purpose of the claim is to give the government entity notice sufficient for it to investigate and evaluate the claim, not to eliminate meritorious actions [citation], the claims statute ‘should not be applied to snare the unwary where its purpose has been satisfied.’” (*Ibid.* citations omitted.) “It must also be noted that California courts have taken a liberal view of claims statutes where a reasonable attempt has been made to comply with the law in good faith.” (*Mace*, *supra*, 199 Cal.App.2d at 525.)

In *Johnson v. Los Angeles* (1955) 134 Cal.App.2d 600, the claim related to a plaintiff tripping on a

defective sidewalk. The claim presented indicated that it occurred at the *southeast* corner of 82nd and Main Street, when it actually occurred at the *southwest* corner of that intersection. (*Id.* at 601.) The description of the location was deemed to be sufficient. Thus, giving the general location was sufficient to meet the requirement to indicate the place of the incident.

In *Johnson v. Oakland* (1961) 188 Cal.App.2d 181, the claim submitted by Plaintiff indicated that the incident (a fall on a defective sidewalk) occurred in front of 1819 **34th** Avenue, Oakland when it in fact occurred in front of 1819 **35th** Avenue, Oakland. (*Id.* at 182.) Defendant filed a motion for summary judgment arguing, in part, that the claim failed to properly identify the location of the incident and was therefore defective. The trial court granted the motion. The Court of Appeal found that Plaintiff substantially complied with the requirement to indicate the place of the incident and held that the “motion for summary judgment should not have been granted.” (*Id.* at 184.) The Court of Appeal did note that the Defendant still had the right to show that plaintiff’s actions were due to lack of good faith with the intent to mislead. That issue, however, would need to be tried.

Here, the address referenced (974 Moraga Way) may not exist. However, the Town has failed to show that the general description that the incident occurred on Moraga Way “near Moraga Country Club Golf Course,” was so inadequate that it failed to provide it “sufficient information to enable it to adequately investigate” the claim. At a minimum, the issue as to whether the above description is sufficient to meet the requirements of Government Code section 910 is a factual question to be determined by the trier of fact.

As the moving party, the Town has the burden to show that one or more elements of the claim cannot be established. (Code Civ. Proc. § 437c (p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists....” (*Ibid.*) “[T]here is no obligation on the opposing party (plaintiff[]) here) to establish anything by affidavit unless and until the moving party (defendant here) has by affidavit stated ‘facts establishing *every element* necessary to sustain a judgment in his favor.’” (*Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44, 50.) As such, the Town’s arguments relating to Plaintiff’s failure to present admissible evidence do not come into play – as the Town has failed to meet its initial burden. As such, Plaintiff is not required to produce any evidence in response.

Additionally, it is the Defendants burden to “present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence....” (*Aguilar*, 25 Cal.4th at 855 emphasis added.) This can be done, for example, via “admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Ibid.* emphasis added.) While Defendant objects to Plaintiff’s evidence relating to the Google Maps information and the Town’s employee’s use thereof, it does not show or even argue that Plaintiff cannot correct the evidentiary issues and get such evidence admitted. Plaintiff may be able to present admissible evidence that the address indicated, while not an official recorded address, nonetheless provides sufficient information for the Town to ascertain where the injury occurred if an ‘adequate investigation’

Conclusion

Defendant’s Motion for Summary Judgment is **denied**.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

11. 9:00 AM CASE NUMBER: C24-02244

CASE NAME: JOAQUIN RECINOS VS. AMPORTS, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS AND PAGA SETTLEMENT**

FILED BY: RECINOS, JOAQUIN

TENTATIVE RULING:

Plaintiff Joaquin Recinos moves for preliminary approval of his class action and PAGA settlement with defendant Amports, Inc. The motion is **granted**.

E. Background and Settlement Terms

Amports is a large-scale automobile processor, in the business of handling the logistics of shipping large quantities of vehicles from manufacturers on their way to dealerships, including such related functions as installations, tracking, and inspections. It operates a number of large facilities, including in Antioch and Benicia. As will be seen, the large physical size of the facilities is central to the issues in the case.

Highly unusually among wage-and-hour class actions and PAGA cases, this case does not center on allegations of underpaid wages, unallowed rest and meal breaks, off-clock work, and the like. Instead, it focuses entirely on unpaid employee use of personal cell phones for conducting Amports's business. Only facility managers are issued company-provided phones. The central theory of the complaint is that lower-level employees are also required to use their cells to do their jobs, but they are not compensated for such use.

The original complaint was filed on August 21, 2024, asserting class-action claims and a PAGA claim.

The settlement would create a gross settlement fund of \$210,000. The class representative payment to the plaintiff would be \$5,000. Attorney's fees would be \$70,000 (one-third of the settlement). Litigation costs would not exceed \$15,000. The settlement administrator's costs are estimated at \$10,000. PAGA penalties would be \$10,000, resulting in a payment of \$6,500 to the LWDA. The net amount paid directly to the class members would be about \$103,500. The fund is non-reversionary. There are an estimated 299 class members. Based on the estimated class size, the average net payment for each class member is approximately \$346. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time.

The entire settlement amount will be deposited with the settlement administrator within 7 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employed at Defendants' California facilities between August 21, 2020 and July 29, 2025.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class